

DECEMBER, 1957
35c

IMAGINATION

SCIENCE FICTION

**FUGITIVE
OF THE STARS**

by
Edmond Hamilton



36
IMAGINATION
SCIENCE FICTION

DECEMBER, 1957
35¢

FUGITIVE
OF THE STARS
by
Edmond Hamilton



The Project Gutenberg eBook of The Fall of Archy House

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Fall of Archy House

Author: Tom W. Harris

Illustrator: W. E. Terry

Release date: April 30, 2021 [eBook #65199]

Most recently updated: October 18, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/65199

Credits: Greg Weeks, Mary Meehan and the Online Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK THE FALL OF
ARCHY HOUSE ***

THE FALL OF ARCHY HOUSE

By Tom W. Harris

**Television is a swell way of projecting
ideas to an audience. But Archy created chaos
when he used it to project real live monsters!**

**[Transcriber's Note: This etext was produced from
Imagination Stories of Science and Fantasy
December 1957**

**Extensive research did not uncover any evidence that
the U.S. copyright on this publication was renewed.]**



For over two weeks, the projections were a national emergency, and the nation got pretty sore at Archy House.

Archy was on camera when it happened. He always closed the Home Hour in person, partly because nobody else did it quite as well, partly because it flattered the audience to see him.

His delivery was almost shaken, the night the thing happened, by the appearance of Otto Kahler, chief engineer, just out of camera-range, his hair in his eyes and a wildness about his mouth.

Arch closed his patter smoothly, set a smile through fadeout, and turned to Kahler.

"What's up, Otto? You look like a ghost that saw a ghost." He let annoyance enter his voice. He was surrounded by the best men money could buy, and sometimes they ran around like children.

"The scrambler blew," said Otto. "Somebody spilled a pail of water on it."

In an office a phone began ringing. "Mr. House," somebody shouted, "it's the White House calling."

Archy gave Otto a shove. "Dammit, man, switch on the auxiliary. Do I have to tell you?" Otto just stood there as Archy turned and yelled into the confusion off the set, "Tell Washington I'll be right with 'em."

His eye swept the studio. "Where's June Manning?"

Even in this tight moment, his breath gave the familiar balloon-lurch as Full-Projection Studio's top writer glided from the directors' studio in her blue sheathe gown. Her wheat-blond hair was dressed in the latest style, a yard-long, loose-braided hank slung richly over her shoulder; and her face was part cherubic, part perverse.

Another phone began ringing.

"June, I want a 30-second yak to give the viewers. You have 90 seconds to get it on idiot cards; I'm going on with it right after the station break. The scramblers failed. Gimme something soothing to say. Got it?"

She nodded and marched off. Otto cleared his throat. Archy spun. "What are you waiting for? Get switched to auxiliary! We've got projections prancing around living rooms in every suburb in the country."

Another phone was ringing. "General Cox for Mr. House," somebody yelled. "Calling from Hawaii."

Archy wished these jackasses would all drop dead. He shook Otto.

"I tried the auxiliary," said Otto. "It's out."

"Holy volts," said Archy.

For the first time in his life he felt desperate. A cool head and a habit of never being wrong had got him where he was—founder and top banana of

Full-Projection, sole owner of three TV networks using the revolutionary 3-D devices perfected by Otto Kahler and patented by Archy. In the present emergency, he tried to keep his head still cool and continue to never be wrong.

A stagehand was running a phone out onto the set. Waiting, Archy snapped instructions at Otto—put half the staff to trying to get the scramblers operating, set the other half to slapping together an emergency machine. Otto dashed off and the phone was slapped into Archy's hand.

"Yes, Ben," he said assuringly to the President of the United States. "What can I do for you?"

"You can get those projections out of my living room," snapped the president. "They're still doing their acts from the circus show—jugglers, acrobats, an animated cartoon. What happened?"

"Don't worry, Pops. An experimental commercial goofed. Stay tuned; we'll have the scramblers on in ten minutes."

"You'd better," crackled President Conklin. "I have guests—this could be an international incident. And don't call me Pops."

"Sit tight. And now excuse me, Ben, I'm going on the air. Just keep the projections near the set, within scrambler range."

He was on. They used the conventional flatscreen cameras, and June's script was as smooth as if she'd worked all day on it ... as smooth as her satiny shoulders and not-quite-uncovered bust. It explained that due to uncontrollable circumstances scrambler-power was temporarily off.

"Our advice is, stay calm," Archy read smoothly. "The projections are not real people. They are harmless. They are merely images of people, just as in old-fashioned flat TV, except that they are projected into your home in full dimensions. Even with no scrambler to dissipate the electro-magnetic configuration of which they are composed, they will not last long.

"They are held together, energized, by the energy beamed from our studios through your set. Without that power they will vanish, probably within a few minutes."

Reassured by what he had just read, Archy took more phone calls.

The general in Hawaii told him the barracks were full of Pixie Owens projections, Bikini-clad, and military discipline was shattered.

The mayor of New York reported that Central Park was teeming with Wild West Theater projections, and armadillos in the streets had jammed all traffic.

President Conklin made a furious repeat call. The Russian consulate had sent a stiff note protesting the "degenerate practical joke" perpetrated on a Soviet diplomat attending Conklin's soiree.

The skipper of a battleship said his men proposed tossing all projections overboard, and he wanted to know if this would constitute murder.

Archy said it wouldn't, instructed his staff to take no more calls, and went to find Otto. June went with him.

June was a person with a knack for making you think of something else no matter what crisis you were embroiled in. In the elevator, Archy slipped an arm around her. "I've got an idea," he whispered.

"I'll scream," she warned, "and this shaft is like a megaphone."

"That's not the idea—anyway, an elevator is too cramped. My idea is; let's get married when this is over."

"Hmmm." She twisted back provocatively. "I've got another idea—give me a raise and I might think about it."

"That's what you said the last three times, and now you're drawing a thousand a week."

"And worth every buck of it."

"True, true. If I didn't pay you what you're worth, professionally, some other outfit would steal you."

"You think I'd pull out just for a raise?"

"You'd be nuts if you didn't. Look, June—if you married me, a thousand a week would be nothing—peanuts."

She laughed, throaty but tinkling, a brook flowing through chimes. "And you wonder why I won't marry you. My friend, I won't marry you until you figure out *why* I won't."

The elevator stopped before he could ask for explanations. They found Otto among his machines, seated at a table. There were sheets of paper on it. There was also a small, furry body.

"Okay, Otto—when do we get a scrambler on? I've got the great American public snowed, but I can't hold 'em forever."

"We just found the trouble," said Otto, brushing the hair off his forehead. "It's crazy." He picked up the furred object. "A mouse got into the auxiliary and shorted it."

"Number one," said Archy. "Tomorrow I fire the maintenance staff. Mice—in my studio! Number two—how soon can you have a scrambler going?"

"Fifteen minutes," said Otto proudly.

"Make it ten. Buzz me in the studio. We'll cut right into the program."

Back in the elevator, Archy crowed. "That's it, Baby—Archy House in action, everything taken care of."

"No credit for Otto?"

"You kidding. Otto's smart enough to work for me, but I'm smart enough to hire him. So who's smartest?" He juggled the mouse in his hand, reflectively. "Without me, Otto'd be nowhere. Somebody else'd have his idea. The smart guys are the promoters, chick. Why not marry one?"

She snorted wordlessly. He tossed the mouse in his palm and suddenly swore.

"I hurt your feelings, promoter?"

"Look at this mouse!"

She eyed him quizzically.

"This mouse never crawled into any scrambler," said Archy. "It was stuck in there, dead, and I've been sabotaged. It has a broken neck."

The elevator stopped, the door slid back, and Archy's mind left the mouse. It was as though a mirror had popped up before him. He was staring at a nattily-dressed, cocky replica of himself.

"Don't worry, about anything, Mac," said the projection. "I'll have things tight in a jiffy."

"My God," said June. "The monitor sets were on. Projections must be all over the studio."

"Hi, chick," said the projection. "Come on up to the office; there's some things to talk about."

Archy swung. The blow slipped harmlessly through the projection's jaw.

"You're passe," said the projection. "Outmoded. Here, play with Andy. Come on, June."

Archy cannoned a kick at the cartoon armadillo. His foot passed through, trailing a filmy tatter which snapped back into Andy's body.

"Eat Teeny-Crunchy Peanut Butter, kids," sang Andy Armadillo.

Eight minutes later Otto rang the buzzer. June had the projections doing a show in an office; when the scrambler kicked on they vanished. But an hour after that the White House called Archy.

"You only nailed about ten percent of those characters of yours," shouted President Conklin. "The rest had wandered out of range—I mean the ones all over the country. What are you going to do about it?"

"Don't worry, pops. All under control ... my best people are working on it."

"Under control? With seven Pixie Owenses strip-teasing on the White House lawn? You get down here, House, and bring your staff."

Conklin's receiver slammed before Archy could answer. He slowly rubbed his ear. "This is getting bad."

A week later things were still bad. Archy, June and Otto were still in Washington, and the President had called another conference. Of all the

projections, the one of himself distressed Archy the most. They were insufferably arrogant. One had tried to pilot the plane that took him to the capital. Dozens had congregated at Full-Projection Studios, issuing orders to the staff. Twice, one had talked his way into a Presidential conference. "The only way you can tell they aren't real," said a guard, "is to poke them. I should poke somebody coming to see the President?"

"Can't people tell they aren't me by the way they act?" Archy asked June. "Cheeky, bossy—OBVIOUSLY they aren't me."

"Obviously, huh?" said June. "Let's go, or we'll miss the conference."

President Conklin opened the discussion with general remarks.

"In the first place, the Attorney-General informs me that Mr. House is legally responsible for the behavior of these projections—they are his agents, insofar as they are beings; his possessions, insofar as they are things. If Mr. House cannot rid the country of them, he is liable to extremely grave consequences."

"Hold on," blurted Archy, with a dark glance at Otto. "My master-scrambler was sabotaged. I can't be held responsible for that."

"Do you know who did it? Can you definitely prove it was sabotage?"

Archy reddened. "I can tell you I'll find out."

"Until you do, it's your responsibility. Now today we have two reports. Mr. Otto Kahler—a very capable man, and I understand he is the real inventor of the full-projection process—has discovered how the projections manage to survive although cut off from studio power. Also, he has some comments on their nature. Before we hear from him, there is a report from the Secretary of the Interior."

The Secretary was a bald, tired, paunchy man who reminded people of a banker. Perhaps because he had been a banker. He opened his mouth to begin.

*"Tell your mother,
Tell your brother,
Ain't no better
Peanut butter!"*

The raspy song came from beneath the table. Archy dived under and out frisked an Andy Armadillo projection, natty in green breeches and prospector's hat.

The cartoon sat jauntily in the middle of the table. "Say, kids," he addressed the group, "Teeny-Crunch Peaner Butter really has it. This peaner butter is like going to heaven. It's smooth yet—"

"Get out of here!" screamed Archy.

The Armadillo eyed him. "Look, Mac, I'm doing an act. I'm tired of being turned off." He began the commercial again.

The conference moved to another room. "Better chink the door," said Otto.

The Secretary of the Interior began anew. Archy listened closely; there would be a chance to trip this guy up.

"It's estimated that 500,000,000 projections are at large," said the secretary. "Here are some things that have happened:

"Throngs of the cowboy projections are heading west. They get on horses and chase cattle. The horses buck them off, they climb right back on. Half the horses in the country are so crazed they'll be useless forever. Villain projections are hiding all over the nation. The cowboy hero projections are fighting the villains in a million bar-rooms. Fortunately they can't use real guns, but customers aren't convinced."

"Who cares about a bunch of drunks?" said Archy. Everybody scowled.

"The Pixie Owens projections I needn't dwell on. They've caused thousands of auto wrecks just by appearing along highways.

"The clowns and jugglers have put the circuses out of business by invading at show time. The jugglers get into ping-pong tournaments, juggle the balls. Nobody can keep them out.

"The armadillo cartoons have bankrupt Teeny-Crunch Peanut Butter—nobody will buy it.

"The projections are claiming U.S. citizenship and the right to vote. The Archy projections are organizing them. They've horned into every village, town, city, state, and national governmental conclave.

"Projections hunt audiences. They have disrupted every stage show in the country. They put on shows in people's living rooms, in parks, in the middle of the street. A few got jobs with stock companies, in movies, and so on, but they can only play one part—the one they were doing for Full-Projection."

"I'm entitled to a percentage of their earnings," said Archy.

"They've all been fired," said Otto. "If the secretary is through—the report is beginning to border on the nature of the projections—perhaps I can make my report now."

President Conklin glanced at the Secretary, who nodded.

"I guess you know their mental properties," said Otto.

"Sort of monomaniacs. They're counterfeit humans, of course, but limited counterfeits. The configuration projected for any given actor is solely of the elements in that person which are involved in the part being played. Part of the neural patterns synapses, so on—only a part, but complete circuits—are projected.

"This part is enough to allow a certain freedom of development, acquisition of new ideas, individuality. Basically a projection is a replica of the person being projected. Pixie, for instance, has never strip-teased on one of the shows...."

"I should hope not!" snuffed the Secretary.

"... but the projection Pixie does what the real Pixie has implicit in her nature. Our friend the armadillo, being only a cartoon, is different. About all he can do is repeat commercials.

"Physically, the projections eat no food. They are not quite solid—one couldn't pick up a coin or a hammer, but could handle a ping-pong ball or a fluff of cotton.

"They are somewhat plastic and slip through restricted openings. I saw one walk through a screen door, and I'm told they can get through keyholes.

They can be temporarily broken up by physical means, but come right back together."

"I know how to lick 'em!" shouted Archy. "Chop 'em up fine and disperse the pieces."

"The sheriff of Pickle, W.Va., tried that," said Otto. "Ran a bunch of clown projections through a fine chopper. They reconstituted into one gigantic clown currently scaring hell out of half the state."

"Maybe we could make portable scramblers," said Archy. "Everybody could carry one."

"That's been considered," said the President. "Hunting down projections one by one would take years. Please continue, Mr. Kahler."

"I've found out how they keep going without studio power," said Otto. "They hang around electrical installations—high-tension lines, generators, radio and TV transmitters, even auto batteries. Wherever there are electromagnetic fields. They go a day or two on their own, then get recharged. There are gangs of them hanging around these places."

"That's it!" pronounced Archy. "That's where we can scramble them."

"We'll probably try it," said Otto, "but it won't get many. They'll just go to the millions of miles of power lines."

"Then turn off all the power," said Archy. "Starve 'em."

Several people spoke at once, and Archy's chest went up. The president silenced them.

"Do you realize what that would mean, turning off the country's power? Deliberate disaster."

Archy reddened. "Well."

"Could Mr. House please refrain from interruptions?" snuffed the Secretary.

June's hand, under the table, patted Archy's knee. She didn't say anything—just patted his knee.

"I have one last question," said the President. "Mr. Kahler, I understand these projections are extremely complex electronic propagations. How can

they be maintained by random power fields like batteries and high-tension wires?"

"There's a difference between propagating them and maintaining them," said Otto. "Once you've projected them, maintenance is fairly simple."

"I see," said Conklin. "I believe that concludes our conference. Mr. House, I don't want to see your face for five days. And I want you to come and tell me the projections are gone. All of them. If this happens, the damage might be—well, attended to. If it doesn't—you will be broken, Mr. House, very thoroughly."

"Okay, Pops," said Archy. "I mean—Mr. President."

Back at the hotel, June and Otto accompanied Archy to his suite. He wanted to talk to them, though he had a root-deep feeling nothing could do any good.

Somebody was in the suite, standing with a finger stuck in a light socket. "Hello, bud," grinned the Archy-projection passing from translucency to opaqueness as the current vitalized it. "Thought I'd recharge at *our* place here."

Archy glared. "Ignore the S.O.B.," he told the others. "Without an audience he won't stay."

It took an hour, during which the Archy-projection bragged of his plans for forming a TV company, stage troupes, running for congress, and producing more projections of himself, but finally he left. Archy's face was sunk in his hands.

"Maybe you're the only people I can admit this to," he said, "but I'm whipped."

"You actually mean that, Archy?" June's voice was not quite mocking.

"Yes. I thought there was nothing I couldn't get on top of—I was like that damned walking marionette that just pranced out of here—a blowhard. I'm beat, folks."

"Maybe you'll come up with something," offered Otto. "Maybe...." June shushed him.

"You two had better get out from under," said Archy. "June, find some nice guy to marry—hell, marry Otto, I know he likes you. I'm pulling my money out of the bank—split it between you. It won't help me where I'm going."

June sat on his lap.

"Honey, suppose there was a way for you to get rid of all those projections? Then you could take the credit and come back strong as ever."

"How could I take the credit?"

"Suppose your own staff made the plan? After all, you're smart enough to hire them."

"Maybe this sounds crazy, coming from me, but the credit would go to whoever deserved it. What good is it to be a big shot if you know you've been licked, even once?"

June seemed to turn something over in her mind, looking at it; there was silence before she spoke.

"I've got an idea," she said.

"What?" he asked hopelessly.

"Let's get married when this is all over. I'd like it better even than a thousand a week."

"You're nuts," he said. "Marry a phony—a blowhard? That's why you never did marry me, isn't it? *Isn't it?*"

"Yes," said June. "And I said, if you remember, that I'd marry you if you ever figured that out. Which you have."

"I've got to go see the desk clerk," said Otto. "Told him I'd help with his—ah—radio set. But here's an idea—why not get married Friday at Big Butte?"

It was all too fast for Archy. "Big Butte? What's that?" But Otto was gone, and June began to tell him.

It was an evening ceremony, the Big Butte, Wyoming, wedding and well attended by everyone but projections. There were no more free-moving projections. Every one in the nation had gathered at Big Butte, in the middle of Wyoming, for a popularity contest and organizational meeting organized by Archy and the Archy projections, backed by Full-projection money. And when they were gathered—the whole fantastic crew of them—Otto had actuated the gigantic scrambler concealed on the butte and the insubstantial pageant faded, leaving not a wrack behind.

The honeymoon was marred by one small thing.

"You know," said Archy "one thing I've gotta do is find out who sabotaged me in the first place."

"I guess I can let you know," said June. "I wanted to teach you a lesson. I had no idea it'd get out of hand—what are you going to do?"

Archy had made a sudden move. "I was going to spank you," he said, firming his grip on her. "But now I have ahold of you. I'd rather—well—we *are* married."

*** END OF THE PROJECT GUTENBERG EBOOK THE FALL OF
ARCHY HOUSE ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.